

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 16-019
Amendment to Title 8, Chapter 6 of the
Code of the Chickasaw Nation
Initiative Petitions**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed the Code of the Chickasaw Nation and finds a need to amend Title 8, Chapter 6, Initiative Petitions.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 8, Chapter 6, Section 8-602 and Section 8-603, so that each will read as follows with the added words shown in red below. Other parts of Section 8-602 and 8-603 are to remain the same and are unaffected by this resolution.

SECTION 8-602 FILING, NOTICE.

When an initiative petition is filed with the Court of the Nation, the Court shall immediately notify the Chairperson of the Legislature, in writing, of the nature of the petition, including a copy of the petition as filed and a certified statement which provides the names of the citizen or citizens filing the petition, the date and time that the petition was received by the Court, as well as a copy of all of the pages containing the signatures of registered tribal voters which were submitted with the initiative petition. The Chairperson of the Legislature shall notify by the most expedient method the remaining members of the Legislature of the petition's filing, placing the item on the agenda for the next regularly scheduled session of the Legislature.

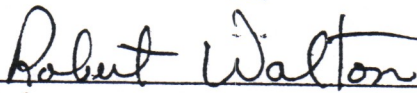
SECTION 8-603 ACTION UPON PETITION.

B. If insufficient time exists between the time the list is provided to the Election Secretary/Tribal Registrar and the date of the next session of the Legislature, then the Election Secretary/Tribal Registrar shall have five (5) working days in which to provide a list of those verified signatures to the Governor. If that period is after the regular session of the Legislature, then the Governor shall call a special session of the Legislature, in accordance with the procedures contained in the Constitution, to be held within five (5) working days of his receipt of the verified list of signatures:

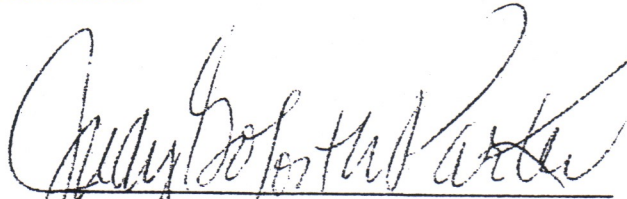
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Executed in special session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 3, 1999, by a vote of 11 ayes, 0 nays, 0 abstentions.

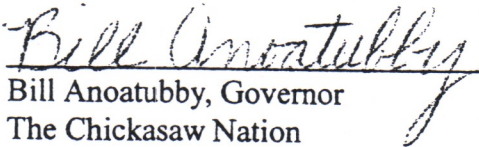


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

MAY 06 1999

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Explanation: This resolution amends Title 8, Chapter 6, Section 8-602 and Section 8-603 of the Code of the Chickasaw Nation, by adding words for clarification. The additional language will be shown in red. --

Requested By: Bill Anoatubby, Governor

Presented By: Lisa Shephard, Chairman
Election Reform Committee